

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1173

By: Stark

AS INTRODUCED

An Act relating to practice of psychology; defining terms; allowing licensed psychologist to prescribe psychotropic drugs under certain conditions; providing for application for conditional prescription certificate; stating application criteria; providing for issuance of, expiration of, and reapplication for certificate; listing conditions under which licensed psychologist may prescribe psychotropic drugs under conditional prescription certificate; providing certain immunity; providing for application for prescription certificate; stating application criteria; listing conditions under which licensed psychologist may prescribe psychotropic drugs under prescription certificate; directing promulgation of rules; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1371.1 of Title 59, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1 1. "Board" means, unless otherwise explicitly stated, the State
2 Board of Examiners of Psychologists;

3 2. "Conditional prescription certificate" means a document
4 issued by the State Board of Examiners of Psychologists to a
5 licensed psychologist who has met requirements for said certificate
6 that permits the holder to prescribe psychotropic medication under
7 the supervision of a supervising physician;

8 3. "Prescription certificate" means a document issued by the
9 State Board of Examiners of Psychologists to a licensed psychologist
10 that permits the holder to prescribe psychotropic medication after
11 met requirements;

12 4. "Psychologist" has the same meaning as provided in Section
13 1352 of Title 59 of the Oklahoma Statutes;

14 5. "Psychotropic medication" means a controlled substance or
15 drug that may not be dispensed or administered without a
16 prescription and whose primary use has been approved by the federal
17 Food and Drug Administration for the treatment of mental disorders
18 or is listed as a psychotherapeutic agent in Drug Facts and
19 Comparisons 2017, or the most recent edition of that book, or in
20 American Hospital Formulary Service Drug Information, and includes
21 antidepressants, antianxiety medications, stimulants,
22 antipsychotics, and mood stabilizers; and
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1 6. "Supervising physician" means a licensed allopathic
2 physician or osteopathic physician who is supervising a psychologist
3 in the prescribing of psychotropic medication.

4 SECTION 2. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1371.2 of Title 59, unless there
6 is created a duplication in numbering, reads as follows:

7 A. A licensed psychologist holding a conditional prescription
8 certificate may prescribe psychotropic medication under the
9 supervision of a supervising physician.

10 B. A licensed psychologist holding a prescription certificate
11 may prescribe psychotropic medication independent of the supervision
12 of a supervising physician.

13 SECTION 3. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1371.3 of Title 59, unless there
15 is created a duplication in numbering, reads as follows:

16 A. A psychologist may apply to the State Board of Examiners of
17 Psychologists for a conditional prescription certificate. The
18 application shall be made on a form approved by the Board and be
19 accompanied by evidence satisfactory to the Board that the
20 applicant:

21 1. Has completed a doctoral program in psychology from an
22 accredited institution of higher education or professional school,
23 or, if the program was not accredited at the time of the applicant's
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1 graduation, that the program meets professional standards determined
2 acceptable by the Board;

3 2. Holds a current license to practice psychology in this
4 state;

5 3. Has successfully completed a postdoctoral master of science
6 degree in psychopharmacology from an institution of higher education
7 approved by the State Board of Examiners of Psychologists, the State
8 Board of Medical Licensure and Supervision, and the State Board of
9 Osteopathic Examiners;

10 4. Has passed a national certification examination approved by
11 the State Board of Examiners of Psychologists, the State Board of
12 Medical Licensure and Supervision, and the State Board of
13 Osteopathic Examiners that tests the applicant's knowledge of
14 pharmacology in the diagnosis, care, and treatment of mental
15 disorders;

16 5. Within the five (5) years immediately preceding the date of
17 application, has successfully completed an organized program of
18 education approved by the State Board of Examiners of Psychologists,
19 the State Board of Medical Licensure and Supervision, and the State
20 Board of Osteopathic Examiners which included didactic instruction
21 of no fewer than four hundred fifty (450) classroom hours in at
22 least the following core areas of instruction:

23 a. neuroscience,

24 b. pharmacology,

- c. psychopharmacology,
- d. physiology,
- e. pathophysiology,
- f. appropriate and relevant physical and laboratory assessment, and
- g. clinical pharmacotherapeutics; or

6. Within the five (5) years immediately preceding the date of application, has been certified by each of the applicant's supervising physicians as having successfully completed a supervised and relevant clinical experience, approved by the State Board of Examiners of Psychologists, the State Board of Medical Licensure and Supervision, and the State Board of Osteopathic Examiners, of:

- a. no less than an eighty-hour practicum in clinical assessment and pathophysiology under the supervision of a licensed allopathic or osteopathic physician, and
- b. an additional supervised practicum of at least four hundred (400) hours treating no fewer than one hundred patients with mental disorders. The practicum to have been supervised one-to-one by any one or a combination of a psychiatrist or other appropriately trained licensed allopathic or osteopathic physician and determined by the State Board of Examiners of Psychologists, the State Board of Medical Licensure and Supervision, and the State Board of Osteopathic

1 Examiners to be sufficient to competently train the
2 applicant in the treatment of a diverse patient
3 population. One-to-one supervision shall be provided
4 either face-to-face, telephonically, or by
5 videoconference.

6 B. The State Board of Examiners of Psychologists shall issue a
7 conditional prescription certificate if it finds that the applicant
8 has met the requirements of subsection A of this section. The
9 certificate shall be valid for a period of two (2) years, at the end
10 of which the holder may again apply pursuant to the provisions of
11 subsection A of this section.

12 C. A psychologist with a conditional prescription certificate
13 may prescribe psychotropic medication under the supervision of a
14 supervising physician subject to the following conditions:

15 1. The psychologist shall continue to hold a current license to
16 practice psychology in this state and shall maintain malpractice
17 insurance in accordance with rules prescribed by the Board;

18 2. The psychologist shall notify the Board of the name of the
19 psychologist's supervising physician; and

20 3. A supervising physician shall notify the supervising
21 physician's own licensing board of the name of each psychologist
22 under the supervising physician's supervision.

23 D. A supervising physician shall not be liable for the acts of
24 a psychologist under the supervising physician's supervision unless

1 an injury or loss arises from those acts under the direction and
2 control of the supervising physician.

3 SECTION 4. This act shall become effective November 1, 2025.

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